

Risk neutral

Fee rule	Meritorious-P shortfall	Nonliable-D burden	Liable-D excess burden	Gross outcome error	Total expenditures
American	0.2552	0.1619	0.0093	0.2558	0.2499
Trial Fee-Shifting	0.2532	0.1587	0.0164	0.2560	0.2449

Risk averse

Fee rule	Meritorious-P shortfall	Nonliable-D burden	Liable-D excess burden	Gross outcome error	Total expenditures
American	0.2393	0.1634	0.0044	0.2576	0.2177
Trial Fee-Shifting	0.2742	0.1156	0.0042	0.2624	0.1865